

HOUSE BILL 2133

By Terry

AN ACT to amend Tennessee Code Annotated,
Title 5; Title 6; Title 7; Title 62, Chapter 9 and Title
68, relative to the Tennessee Secondary
Aluminum Waste Management Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 211, is amended by adding the following as a new part:

68-211-1201.

This part is known and may be cited as the "Tennessee Secondary Aluminum Waste Management Act."

68-211-1202.

As used in this part:

(1) "Department" means the department of environment and conservation; and

(2) "Secondary aluminum waste" means waste material or byproducts, when disposed, containing aluminum generated from secondary aluminum smelting operations and including aluminum dross, salt cake, baghouse dust associated with aluminum recycling furnace operations, or dry-milled wastes.

68-211-1203.

(a) A person or an owner or operator of a solid waste landfill shall not commingle municipal solid waste with secondary aluminum waste.

(b) Secondary aluminum waste may be disposed of in a landfill, but only in a dedicated unit, which includes, but is not limited to, monofills and monocells, that has been permitted for such specific purpose under this chapter.

(c) A person or an owner or operator of a solid waste landfill shall not add secondary aluminum waste or municipal solid waste on top of waste in a previously filled or closed unit, which includes, but is not limited to, monofills and monocells, and which has been permitted for such specific purpose under this chapter, or in any other area containing secondary aluminum waste. The department shall determine when a unit must be designated as filled or closed pursuant to rules promulgated by the department in setting operational and enforcement criteria for landfill units pursuant to subsection (d).

(d) The department shall promulgate rules to implement this section. The rules must:

(1) Include criteria for permitting dedicated secondary aluminum waste landfill units and performance standards for the protection of human health and the environment; and

(2) Be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

68-211-1204.

In addition to the requirements under § 68-211-1203(d), the department shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to effectuate the purposes of this part, including, but not limited to, the establishment of permitting standards and to set operational criteria for dedicated secondary aluminum waste landfill units. In promulgating the rules, the department shall consider liner design, leachate control, monitoring, closure requirements, and any other technical standard necessary to protect public health and groundwater resources.

SECTION 2. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it, and applies to all secondary aluminum waste and municipal solid waste disposed of after that date.